

Tentative Rulings for August 25, 2026 Department 1

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 638 4172**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404402	WINSTON vs VISTANA CALIFORNIA MANAGEMENT, INC.	MOTION TO COMPEL

Tentative Ruling:

Deny; plaintiff has provided code-compliant supplemental responses. Sanctions payable to plaintiff in the amount of \$5,000 against defendant and defendant's counsel payable in 30 days.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505209	HERNANDEZ vs ARMINAK SOLUTIONS, LLC	MOTION TO COMPEL DEFENDANT OMEGA HR, LLC TO ANSWER PLAINTIFF'S SPECIAL INTERROGATORY NO. 3 (SET TWO)

Tentative Ruling:

Grant; responses, without objections, to be served within 30 days. Sanctions of \$2,425 are awarded to plaintiff against defendant, payable in 30 days.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505209	HERNANDEZ vs ARMINAK SOLUTIONS, LLC	MOTION TO COMPEL DEFENDANT OSVALDO RIVAS TO ANSWER PLAINTIFF'S SPECIAL INTERROGATORY NO. 1 (SET ONE)

Tentative Ruling:

Grant; responses, without objections, to be served within 30 days. Sanctions of \$2,425 are awarded to plaintiff against defendant, payable in 30 days.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506124	RICHARDSON vs LIVEHAPPY	MOTION TO COMPEL ARBITRATION

Tentative Ruling: No tentative ruling, appearances requested.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600400	EIGENBERG vs USA WASTE OF CALIFORNIA, INC.	MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Tentative Ruling:

Appearances requested to discuss whether appointment of plaintiff's counsel as settlement administrator is appropriate and whether the class notice should be provided in Spanish. Also, how could a class action settlement prevent class members from suing on claims that have not accrued yet, e.g., based upon claims for odor or other emissions that *occur in the 36 months after final approval*? How does the settlement address class members who cannot declare under penalty of perjury that they have not been diagnosed with any symptoms associated with sickness, disease, or physical injury that may have been caused by defendant's action or inaction? Need to discuss release language vs. claims alleged in the complaint (settlement agreement, ¶ 2.u)

6.

CASE #	CASE NAME	HEARING NAME
RIC2002687	BOREL vs SOUTHERN CALIFORNIA GAS COMPANY	MOTION TO TAX COSTS

Tentative Ruling: Previously continued to September 22.